



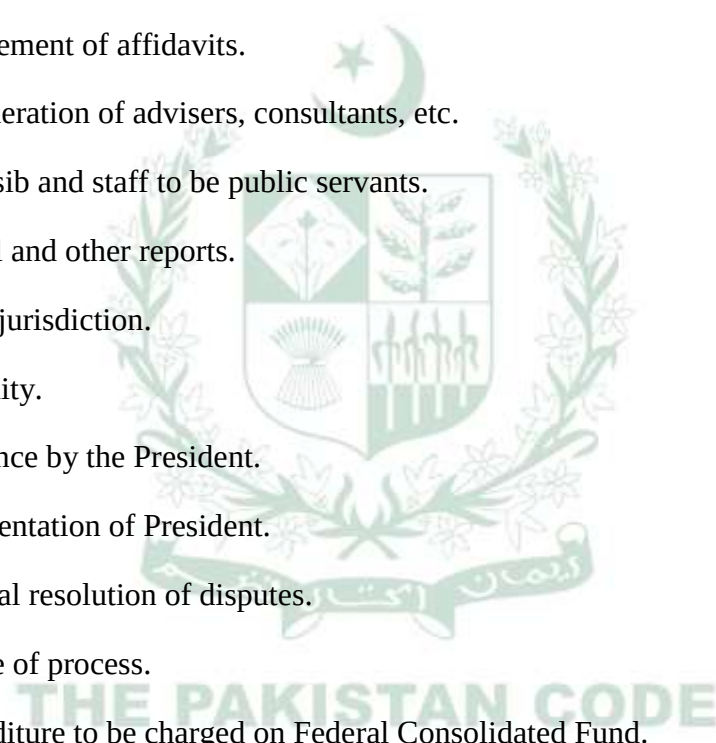
THE ESTABLISHMENT OF THE OFFICE OF WAFAQI MOHTASIB (OMBUDSMAN) ORDER, 1983



CONTENTS

1. Short title, extent and commencement.
2. Definitions.
3. Appointment of Mohtasib.
4. Tenure of the Mohtasib.
5. Mohtasib not to hold any other office of profit, etc.
6. Terms and conditions of service and remuneration of Mohtasib.
7. Acting Mohtasib.
8. Appointment and terms and conditions of service of staff.
9. Jurisdiction, functions and powers of the Mohtasib.
10. Procedure and evidence.
11. Recommendations for implementation.
12. Defiance of recommendations.
13. Reference by Mohtasib.
14. Powers of the Mohtasib.
15. Power to enter and search any premises.
16. Power to punish for contempt.

17. Inspection Team.
18. Standing Committees, etc.
19. Delegation of powers.
20. Appointment of advisers, etc.
21. Authorization of Provincial functionaries, etc.
22. Award of costs and compensation and refund of amounts.
23. Assistance and advice to Mohtasib.
24. Conduct of business.
25. Requirement of affidavits.
26. Remuneration of advisers, consultants, etc.
27. Mohtasib and staff to be public servants.
28. Annual and other reports.
29. Bar of jurisdiction.
30. Immunity.
31. Reference by the President.
32. Representation of President.
33. Informal resolution of disputes.
34. Service of process.
35. Expenditure to be charged on Federal Consolidated Fund.
36. Rules.
37. Order to override other laws.
38. Removal of difficulties.



THE ESTABLISHMENT OF THE OFFICE OF WAFAQI MOHTASIB (OMBUDSMAN) ORDER, 1983

(I of 1983)

[24th January, 1983]

WHEREAS it is expedient to provide for the appointment of the Wafaqi Mohtasib (Ombudsman) to diagnose, investigate, redress and rectify any injustice done to a person through mala administration;

Now, therefore, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President and Chief Martial Law Administrator is pleased to make the following Order:—

1. Short title, extent and commencement.—(1) This Order may be called the Establishment of the Office of Wafaqi Mohtasib (Ombudsman) Order, 1983.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Order, unless there is anything repugnant in the subject or context,—

(1) “Agency” means a Ministry, Division, Department, Commission or office of the Federal Government or a statutory ¹[body] corporation or other institution established or controlled by the Federal Government but does not include the Supreme Court, the Supreme Judicial Council the Federal Shariat Court or a High Court;

(2) “Maladministration” includes—

(i) a decision, process, recommendation act of omission or commission which—

- (a) is contrary to law, rules or regulations or is a departure from established practice or procedure, unless it is bonafide and for valid reasons ; or
- (b) is perverse, arbitrary or unreasonable, unjust, biased, oppressive, or discriminatory ; or
- (c) is based on irrelevant grounds ; or
- (d) involves the exercise of powers, or the failure or refusal to do so, for corrupt or improper motives, such as, bribery, jobbery, favouritism, nepotism and administrative excesses ; and

(ii) neglect, inattention, delay, incompetence, inefficiency and inaptitude, in the administration or discharge of duties and responsibilities ;

(3) “Mohtasib” means the Wafaqi Mohtasib (Ombudsman) appointed under Article 3 ;

(4) “Office” means the office of the Mohtasib ;

¹Inserted by Ord. LXXII of 2002, s.2.

(5) “prescribed” means prescribed by rules made under this Order ;

(6) “public servant” means a public servants defined in Section 21 of the Pakistan Penal Code (Act XLV of 1860), and includes a Minister. Adviser, Parliamentary Secretary and the Chief Executive, Director or other officer or employee or member of an Agency ; and

(7) “staff” means any employee or Commissioner of the office and includes co-opted members of the staff, consultants, advisers, bailiffs, liaison officers and experts.

3. Appointment of Mohtasib.—(1) There shall be Wafaqi Mohtasib (Ombudsman), who shall be appointed by the President.

(2) Before entering upon Office, the Mohtasib shall take an oath before the President in the form set out in the First Schedule.

(3) The Mohtasib shall, in all matters, perform his functions and exercise his powers fairly, honestly, diligently and independently of the Executive; and all executive authorities throughout Pakistan shall act in aid of the Mohtasib.

4. Tenure of the Mohtasib.—(1) The Mohtasib shall hold office for a period of four years and shall not be eligible for any extension of tenure or for re-appointment as Mohtasib under any circumstances.

(2) The Mohtasib may resign his office by writing under this hand addressed to the President.

5. Mohtasib not to hold any other office of profit, etc.—(1) The Mohtasib shall not :—

- (a) hold any other office of profit in the service of Pakistan ; or
- (b) occupy any other position carrying the right to remuneration for the rendering of services.

(2) The Mohtasib shall not hold any office of profit in the service of Pakistan before the expiration of two years after he has ceased to hold that office; nor shall be eligible during the tenure of office and for a period of two years thereafter for election as a member of Parliament or a Provincial Assembly or any local body or take part in any political activity.

6. Terms and conditions of service and remuneration of Mohtasib.—(1) The Mohtasib shall be entitled to such salary, allowances and privileges and other terms and conditions of service as the President may determine and these terms shall not be varied during the term of office of a Mohtasib.

(2) The Mohtasib may be removed from office by the President on the ground of misconduct or, of being incapable of properly performing the duties of his office by reason of physical or mental incapacity:

Provided that the Mohtasib may, if he sees fit and appropriate to refute any charges, request an open public evidentiary hearing before the Supreme Judicial Council and, if such a hearing is not held within thirty days of the receipt of such request or not concluded within ninety days of its receipt, the Mohtasib will be absolved of any and all stigma whatever. In such circumstances, the Mohtasib may

choose to leave his office and shall be entitled to receive full remuneration and benefits for the rest of his term.

(3) If the Mohtasib makes a request under the proviso to clause (2), he shall not perform his functions under this Order until the hearing before the Supreme Judicial Council has concluded.

(4) A Mohtasib removed from office on the ground of misconduct shall not be eligible to hold any office of profit in the service of Pakistan or for election as a member of Parliament or a Provincial Assembly or any local body.

7. Acting Mohtasib.—At any time when the office of Mohtasib is vacant, or, the Mohtasib is absent or is unable to perform his functions due to any cause, the President shall appoint as acting Mohtasib.

8. Appointment and terms and conditions of service of staff.—¹[(1) The members of the staff, other than those mentioned in article 20, shall be appointed by the President, or by a person authorized by him, in such manner as may be prescribed by the Federal Government.]

(2) It shall not be necessary to consult the Federal Public Service Commission for making appointment of the members of the staff or on matters relating to qualifications for such appointment and methods of their recruitment.

(3) The member of the staff shall be entitled to such salary, allowances and other terms and conditions of service as may be prescribed having regard to the salary, allowances and other terms and conditions of service that may for the time being be admissible to other employees for the Federal Government in the corresponding Grades in the National Pay Scales.

(4) Before entering upon office a member of the staff mentioned in clause (1) shall take an oath before the Mohtasib in the form set out in the Second Schedule.

9. Jurisdiction, functions and powers of the Mohtasib.—(1) The Mohtasib may on a complaint by an aggrieved person, on a reference by the President, the Federal Council or the National Assembly, as the case may be, or on a motion of the Supreme Court or a High Court made during the course of any proceedings before it or of his own motion, undertake any investigation into any allegation of maladministration on the part of any Agency or any of its officers or employees;

Provided that the Mohtasib shall not have any jurisdiction to investigate or inquire into any matters which :—

- (a) are *sub judice* before a Court of competent jurisdiction or judicial Tribunal or board in Pakistan on the date of receipt of a complaint, reference or motion by him ; or
- (b) relate to the external affairs of Pakistan or the relations or dealings of Pakistan with any foreign state or government; or .
- (c) relate to, or are connected with, the defence of Pakistan or any part thereof, the military, naval and air forces of Pakistan, or the matters covered by the laws relating to those forces.

¹Subs. by Ord. LXXII of 2002, s.3.

(2) Notwithstanding anything contained in clause (1), the Mohtasib shall not accept for investigation any complaint by or on behalf of a public servant or functionary concerning any matter relating to the Agency in which he is, or has been, working in respect of any personal grievance relating to his service therein.

(3) For carrying out the objectives of this Order and, in particular for ascertaining the root causes of corrupt practices and injustice, the Mohtasib may arrange for studies to be made or research to be conducted and may recommend appropriate steps for their eradication.

(4) The Mohtasib may set up regional offices as, when and where required.

10. Procedure and evidence.—(1) A complaint shall be made on solemn affirmation or oath and in writing addressed to the Mohtasib by the person aggrieved or, in the case of his death, by his legal representative and may be lodged in person at the Office or handed over to the Mohtasib in person or sent by any other means of communication to the Office.

(2) No anonymous or pseudonymous complaints shall be entertained.

(3) A complaint shall be made not later than three months from the day on which the person aggrieved first had the notice of the matter alleged in the complaint, but the Mohtasib may conduct an investigation pursuant to a complaint which is not within time if he considers that there are special circumstances which make it proper for him to do so.

(4) Where the Mohtasib proposes to conduct an investigation he shall issue to the principal officer of the Agency concerned, and to any other person who is alleged in the complaint to have taken or authorised the action complained of, a notice calling upon him to meet the allegations contained in the complaint, including rebuttal:

Provided that the Mohtasib may proceed with the investigation if no response to the notice is received by him from such principal officer or other person within thirty days of the receipt of the notice or within such longer period as may have been allowed by the Mohtasib.

(5) Every investigation shall be conducted in private, but the Mohtasib may adopt such procedure as he considers appropriate for such investigation and he may obtain information from such persons and-in such manner and make such inquiries as he thinks fit.

(6) A person shall be entitled to appear in person or be represented before the Mohtasib.

(7) The Mohtasib shall, in accordance with the rules made under this Order, pay expense and allowances to any person who attends or furnishes information for the purposes of an investigation.

(8) The conduct of an investigation shall not affect any action taken by the Agency concerned, or any power or duty of that Agency to take further action with respect to any matter subject to the investigation.

(9) For the purposes of an investigation under this Order the Mohtasib may require any officer or member of the Agency concerned to furnish any information or to produce any document which in the opinion of the Mohtasib is relevant and helpful in the conduct of the investigation, and there shall be no obligation to maintain secrecy in respect of disclosure of any information or document for the purposes of such investigation:

Provided that the President may, in his discretion, on grounds of its being a State secret, allow claim of privilege with respect to any information or document.

(10) In any case where the Mohtasib decides not to conduct an investigation, he shall send to the complainant a statement of his reasons for not conducting the investigation.

(11) Save as provided in this order, the Mohtasib shall regulate the procedure for the conduct of business or the exercise of powers under this Order.

11. Recommendations for implementation.—(1) If, after having considered a matter on his own motion or on a complaint or on a reference by the President, the Federal Council or the National Assembly, or on a motion by the Supreme Court or High Court, as the case may be, the Mohtasib is of the opinion that the matter considered amounts to mal-administration, he shall communicate his findings to the Agency concerned—

- (a) to consider the matter further;
- (b) to modify or cancel the decision, process, recommendation, act or omission;
- (c) to explain more fully the act or decision in question;
- (d) to take disciplinary action against any public servant of any Agency under the relevant laws applicable to him ;
- (e) to dispose of the matter or case within a specified time;
- (f) to take action on his findings and recommendation to improve the working and efficiency of the Agency within a specified time; or
- (g) to take any other step specified by the Mohtasib.

(2) The Agency shall, within such time as may be specified by the Mohtasib, inform him about the action taken on his recommendations or the reasons for not complying with the same.

¹[(2A). If after considering the reasons of the Agency in respect of his recommendations under clause (2), the Wafaqi Mohtasib is satisfied that no case of mal-administration is made out he may alter, modify, amend or recall the recommendations made under clause (1):

Provided that where the order is made on a complaint, no order shall be passed unless the complainant is given an opportunity of being heard.]

(3) In any case where the Mohtasib has considered a matter, or conducted an investigation, on a complaint or on a reference by the President, the Federal Council or the National Assembly or on a motion by the Supreme Court or a High Court, the Mohtasib shall forward a copy of the communication received by him from the Agency in pursuance of clause (2) to the complainant or, as the case may be, the President, the Federal Council, the National Assembly, the Supreme Court or the High Court.

¹Inserted by Ord. LXXII of 2002, s.4.

(4) If, after conducting an investigation, it appears to the Mohtasib that an injustice has been caused to the person aggrieved in consequence of mal-administration and that the injustice has not been or will not be remedied, he may, if he thinks fit, lay a special report on the case before the President.

(5) If the Agency concerned does not comply with the Recommendations of the Mohtasib or does not give reasons to the satisfaction of the Mohtasib for non-compliance, it shall be treated as “Defiance of Recommendations” and shall be dealt with as hereinafter provided.

12. Defiance of recommendations.—(1) If there is a “Defiance of recommendations” by any public servant in any Agency with regard to the implementation of a recommendation given by the Mohtasib, the Mohtasib, may refer the matter to the President who may, in his discretion direct the Agency to implement the recommendation and inform the Mohtasib accordingly.

(2) In each instance of “Defiance of Recommendations” a report by the Mohtasib shall become a part of the personal file or Character Roll of the public servant primarily responsible for the defiance:

Provided that the public servant concerned had been granted an opportunity to be heard in the matter.

13. Reference by Mohtasib.—Where, during or after an inspection or an investigation, the Mohtasib is satisfied that any person is guilty of any allegations as referred to in clause (1) of Article 9, the Mohtasib may refer the case to the concerned authority for appropriate corrective or disciplinary action, or both corrective and disciplinary action, and the said authority shall inform the Mohtasib within thirty days of receipt of reference of the action taken. If no information is received within this period, the Mohtasib may bring the matter to the notice of the President for such action as he may deem fit.

14. Powers of the Mohtasib.—(1) The Mohtasib shall, for the purposes of this Order, have the same powers as are vested in a civil Court under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of the following matters, namely:—

- (a) summoning and enforcing the attendance of any person and examining him on oath;
- (b) compelling the production of documents ;
- (c) receiving evidence on affidavits ; and
- (d) ssuing commission for the examination of witnesses.

(2) The Mohtasib shall have the power to require any person to furnish information on such points or matters as, in the opinion of the Mohtasib, may be useful for, or relevant to, the subject matter of any inspection or investigation.

(3) The powers referred to in clause (1) may be exercised by the Mohtasib or any person authorised in writing by the Mohtasib in this behalf while carrying out an inspection or investigation under the provisions of this Order.

(4) Where the Mohtasib finds the complaint referred to in clause (1) of Article 9 to be false, frivolous or vexatious, he may award reasonable compensation to the Agency, public servant or other

functionary against whom the complaint was made; and the compensation shall be recoverable from the complainant as an arrears of land revenue:

Provided that the award of compensation under this clause shall not debar the aggrieved person from seeking civil and criminal remedy.

(5) If any Agency, public servant or other functionary fails to comply with a direction of the Mohtasib, he may, in addition to taking other action under this Order, refer the matter to the appropriate authority for taking disciplinary action against the person who disregarded the direction of the Mohtasib.

(6) If the Mohtasib has reason to believe that any public servant or other functionary has acted in a manner warranting criminal or disciplinary proceedings against him, he may refer the matter to the appropriate authority for necessary action to be taken within the time specified by the Mohtasib.

(7) The staff and the nominees of the Office may be commissioned by Mohtasib to administer oaths for the purposes of this Order and to attest various affidavits, affirmations or declarations which shall be admitted in evidence in all proceedings under this Order without proof of the signature or seal or official character of such person.

15. Power to enter and search any premises.—(1) The Mohtasib, or any member of the staff authorised in this behalf, may for the purpose of making any inspection or investigation, enter any premises where the Mohtasib or, as the case may be, such member has reason to believe that any article, book of accounts, or any other document relating to the subject-matter of inspection or investigation may be found, and may—

- (a) search such premises and inspect any article, book of accounts or other documents ;
- (b) take extract or copies of such books of accounts and documents ;
- (c) impound or seal such articles, books of accounts or documents ; and
- (d) make an inventory of such articles, books of accounts and other documents found in such premises.

(2) All searches made under clause (1) shall be carried out, *mutatis mutandis*, in accordance with the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898).

16. Power to punish for contempt.—(1) The Mohtasib shall have the same powers, *mutatis mutandis*, as the Supreme Court has to punish any person for its contempt who—

- (a) abuses, interferes with, impedes, imperils, or obstructs the process of the Mohtasib in any way or disobeys any order of the Mohtasib ;
- (b) scandalises the Mohtasib or otherwise does anything which tends to bring the Mohtasib, his staff or nominees or any person authorised by the Mohtasib in relation to his office, into hatred, ridicule or contempt;

- (c) does anything which tends to prejudice the determination of a matter pending before the Mohtasib ; or
- (d) does any other thing which, by any other law, constitutes contempt of Court:

Provided that fair comments made in good faith and in public interest on the working of the Mohtasib or any of his staff, or on the final report of the Mohtasib after the completion of the investigation shall not constitute contempt of the Mohtasib or his Office.

(2) Any person sentenced under clause (1) may, notwithstanding anything herein contained, within thirty days of the order, appeal to the Supreme Court.

(3) Nothing in this Article takes away from the power of the President to grant pardon, reprieve or respite and to remit, suspend or commute any sentence passed by any Court, Tribunal or other authority.

17. Inspection Team.—(1) The Mohtasib may constitute an Inspection Team for the performance of any of the functions of the Mohtasib.

(2) An Inspection Team shall consist of one or more members of the staff and shall be assisted by such other person or persons as the Mohtasib may consider necessary.

(3) An Inspection Team shall exercise such of the powers of the Mohtasib as he may specify by order in writing and every report of the Inspection Team shall first be submitted to the Mohtasib with its recommendations for appropriate action.

18. Standing Committees, etc.—The Mohtasib may, whenever he thinks fit, establish standing or advisory committees at specified places with specific jurisdiction for performing such functions of the Mohtasib as are assigned to them from time to time and every report of such committee shall first be submitted to the Mohtasib with its recommendations for appropriate action.

19. Delegation of powers.—The Mohtasib may, by order in writing, delegate such of his powers as may be specified in the order to any member of his staff or to a standing or advisory committee, to be exercised subject to such conditions as may be specified and every report of such member or committee shall first be submitted to the Mohtasib with his or its recommendations for appropriate action.

20. Appointment of advisers, etc.—The Mohtasib may appoint advisers, consultants, fellows, bailiffs, interns, commissioners and experts, or ministerial staff with or without remuneration, to assist him in the discharge of his duties under this Order.

21. Authorization of Provincial functionaries, etc.—The Mohtasib may, if he considers it expedient, authorize with the consent of a Provincial Government any agency, public servant or other functionary working under the administrative control of the Provincial Government to undertake the functions of the Mohtasib under clause (1) or clause (2) of Article 14 in respect of any matter falling within the jurisdiction of the Mohtasib and it shall be the duty of the agency, public servant or other functionary so authorised to undertake such functions to such extent and subject to such conditions as the Mohtasib may specify.

22. Award of costs and compensation and refund of amounts.— (1) The Mohtasib may, where he deems necessary, call upon a public servant, other functionary or any Agency to show-cause why compensation be not awarded to an aggrieved party for any loss or damage suffered by him on account of any mal-administration committed by such public servant, other functionary or Agency, and after considering the explanation and hearing such public servant, other functionary, or Agency, award reasonable costs or compensation and the same shall be recoverable as arrears of land revenue from the public servant, functionary or Agency.

(2) In case involving payment of illegal gratification to any employee of any Agency, or to any other person on his behalf, or misappropriation, criminal breach of trust or cheating, the Mohtasib may order the payment thereof for credit to the Government or pass such other order as he may deem fit.

(3) An order made under clause (2) against any person shall not absolve such person of any liability under any other law.

23. Assistance and advice to Mohtasib.—The Mohtasib may seek the assistance of any person or authority for the performance of his functions under this Order.

(2) All officers of an Agency and any person whose assistance has been sought by the Mohtasib in the performance of his functions shall render such assistance to the extent it is within their power or capacity.

(3) No statement made by a person or authority in the course of giving evidence before the Mohtasib or his staff shall subject him to, or be used against him in, any civil or criminal proceedings except for prosecution of such person for giving false evidence.

24. Conduct of business.—(1) The Mohtasib shall be the chief executive of the Office ¹[and shall enjoy administrative and financial autonomy as may be prescribed by the Federal Government].

(2) The Mohtasib shall be the Principal ¹[Accounting] Officer of the Office in respect of the expenditure incurred against budget grant or grants controlled by the Mohtasib and shall, for this purpose, exercise all the financial and administrative powers delegated to ¹[him].

25. Requirement of affidavits.—(1) The Mohtasib may require any complainant or any party connected or concerned with a complaint, or with any inquiry or reference, to submit affidavits attested or notarized before any competent authority in that behalf within the time prescribed by the Mohtasib or his staff.

(2) The Mohtasib may take evidence without technicalities and may also require complainants or witnesses to take lie detection tests to examine their veracity and credibility and draw such inferences that are reasonable in all circumstances of the case especially when a person refuses, without reasonable justification, to submit to such tests.

26. Remuneration of advisers, consultants, etc.—(1) The Mohtasib may, in his discretion, fix an honorarium or enumeration of advisers, consultants, experts and interns engaged by him from time to time for the services rendered.

¹Added & Subs. by Ord. LXXII of 2002,s.5.

(2) The Mohtasib may, in his discretion, fix a reward or remuneration to any person for exceptional services rendered, or valuable assistance given to the Mohtasib in carrying out his functions:

Provided that the Mohtasib shall withhold the identity of that person, if so requested by the person concerned, and take steps to provide due protection under the law to such person against harassment, victimization, retribution, reprisals or retaliation.

27. Mohtasib and staff to be public servants.—The Mohtasib, the employees, officers and all other staff of the office shall be deemed to be public servants within the meaning of Section 21 of the Pakistan Penal Code (Act XLV of 1860).

28. Annual and other reports.—(1) Within three months of the conclusion of the calendar year to which the report pertains, the Mohtasib shall submit an Annual Report to the President.

(2) The Mohtasib may, from time to time, lay before the President such other reports relating to his functions as he may think proper or as may be desired by the President.

(3) Simultaneously, such reports shall be released by the Mohtasib for publication and copies thereof shall be provided to the public at reasonable cost.

(4) The Mohtasib may also, from time to time, make public any of his studies, research, conclusion, recommendations, ideas or suggestions in respect of any matters being dealt with by the Office.

(5) The report and other documents mentioned in this Article shall be placed before the Federal Council or the National Assembly, as the case may be.

29. Bar of jurisdiction.—No Court or other authority shall have jurisdiction.—

(1) to question the validity of any action taken, or intended to be taken, or order made, or anything done or purporting to have been taken, made or done under this Order ; or

(2) to grant an injunction or stay or to make any interim order in relation to any proceedings before, or anything done or intended to be done or purporting to have been done by, or under the orders or at the instance of the Mohtasib.

30. Immunity.—No suit, prosecution or other legal proceeding shall lie against the Mohtasib, his Staff, Inspection Team, nominees, member of a standing or advisory committee or any person authorised by the Mohtasib for anything which is in good faith done or intended to be done under this Order.

31. Reference by the President.—(1) The President may refer any matter, report or complaint for investigation and independent recommendations by the Mohtasib.

(2) The Mohtasib shall promptly investigate any such matters, report or complaint and submit his findings or opinion within a reasonable time.

(3) The President may, by notification in the official Gazette, exclude specified matters, public functionaries or Agencies from the operation and purview of all or any of the provisions of this Order.

32. Representation of President.—Any person aggrieved by a decision or order of the Mohtasib may, within thirty days of the decision or order, make a representation to the President, who may pass such order thereon as he may deem fit.

33. Informal resolution of disputes.—(1) Notwithstanding anything contained in this Order, the Mohtasib and a member of the staff shall have the authority to informally conciliate, amicably resolve, stipulate, settle, or ameliorate any grievance without written memorandum without the necessity of docketing any complaint or issuing any official notice.

(2) The Mohtasib may appoint for purposes of liaison counsellors, whether honorary or otherwise, at local levels on such terms and conditions as the Mohtasib may deem proper.

34. Service of process.—(1) For the purposes of this Order, a written process or communication from the Office shall be deemed to have been duly served upon a respondent or any other person by, *inter alia*, any one or more of following methods, namely:—

- (i) by service in person through any employee of the Office or by any special process-server appointed in the name of the Mohtasib by any authorized staff of the officer, or any other person authorised in this behalf;
- (ii) by depositing in any mail box or posting any Post Office a postage prepaid copy of the process, or any other document under certificate of posting or by registered post acknowledgment due to the last known address of the respondent or person concerned in the record of the Office, in which case service shall be deemed to have been effected ten days after the aforesaid mailing;
- (iii) by a police officer or any employee or nominee of the Office leaving the process or document at the last known address, abode, or place of business of the respondent or person concerned and, if no one is available at the aforementioned address, premises or place, by affixing a copy of the process or other document to the main entrance of such address ; and
- (iv) by publishing the process or document through any newspaper and sending a copy thereof to the respondent or the person concerned through ordinary mail, in which case service shall be deemed to been effected on the day of the publication of the newspaper.

(2) In all matters involving service the burden of proof shall be upon a respondent to credibly demonstrate by assigning sufficient cause that he, in fact, had absolutely no knowledge of the process, and that he actually acted in good faith.

(3) Whenever a document or process from the Office is mailed, the envelope or the package shall clearly bear the legend that it is from the Officer.

35. Expenditure to be charged on Federal Consolidated Fund.— The remuneration payable to the Mohtasib and the administrative expenses of the Office, including the remuneration payable to staff nominees and grantees, shall be an expenditure charged upon the Federal Consolidated Fund.

36. Rules.—The Mohtasib may, with the approval of the President, make rules for carrying out the purposes of the Order.

37. Order to override other laws.—The provisions of this Order shall have effect notwithstanding anything contained in any other law for the time being in force.

38. Removal of difficulties.—If any difficulty arises in giving effect to any provision of this Order, the President may make such order, not inconsistent with the provisions of this Order, as may appear to him to be necessary for the purpose of removing such difficulty.

THE FIRST SCHEDULE

[See Article 3 (3)]

I.....do solemnly swear that I will bear true faith and allegiance to Pakistan;

That as Wafaqi Mohtasib, I will discharge my duties and perform my functions honestly, to the best of my ability, faithfully in accordance with the laws of the Islamic Republic of Pakistan, and without fear or favour, affection or ill-will;

That I will not allow my personal interest to influence my official conduct or my official decisions;

That I shall do my best to promote the best interest of Pakistan;

And that I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration, or shall become known to me, as Wafaqi Mohtasib, except as may be required for the due discharge of my duties as Wafaqi Mohtasib.

May Allah Almighty help and guide me (Amen).

THE SECOND SCHEDULE

See Article 8 (4)

I.....do solemnly swear that I will bear true faith and allegiance to Pakistan;

That as an employee of the office of the Wafaqi Mohtasib, I will discharge my duties and perform my functions honestly, to the best of my ability, faithfully, in accordance with the laws of the Islamic Republic of Pakistan and without fear or favour, affection or ill-will;

That I will not allow my personal interest to influence my official conduct or my official decisions;

And that I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration, or shall become known to me, as an employee of the office of the Wafaqi Mohtasib.

May Allah Almighty help and guide me (Amen).